

Westhampton Board of Health

Minutes for January, 17th, 2019

Town Hall Annex

3 South Rd.

4 p.m.

Meeting called to order @ 4:03 PM

Present:

Board: Tom P Martin, David Blakesley,

Agent: Valerie Bird

Others: Ginny Curtis, Michael Kelsey, Nicole Kelsey

Minutes approved from December 6th meeting.

Tom Martin discussed the KOA campground septic failures. The septic systems fall under DEP jurisdiction because the flow is over 10,000 GPD. The board voted unanimously to rescind the enforcement order regarding the 6 month time limit for upgrading the failed septic system issued by the Board of Health.

The board also discussed the permit to operate the campground with a failed septic would not be issued unless the septic systems were upgraded. See below:

"440.10: Sewage Disposal (1) All gray and black waste water shall be discharged to a sanitary drainage system connected to a public sewerage system; provided, that if because of non-availability, distance, or ground conditions, connection to a public sewerage system is not practicable, any other means of sub-surface disposal of sewage may be installed after approval by the board of health **and noncompliance with 310 CMR 15.00: Subsurface Disposal of Sanitary Sewage (Title V).**"

Alternatives were discussed. The Board ^{discussed} voted to allow a permit to operate to be issued for the 2019 season provided that the existing failed systems be capped at the tank and utilized as "tight tanks", and pumped regularly until the systems were upgraded according to DEP's time limits. Septic tanks should also be inspected at initial pumping and capping to determine structural integrity.

The failed system at the house is of particular concern as this gets year round flow and appears to be the source of numerous complaints. The board discussed this tank may need to be pumped more frequently than the other.

The BOH discussed Air BnB permitting and zoning bylaw. Enforcement of registering was discussed. The number of rentals properties was determined to be

in the range of 9-14 in Westhampton. Rental properties were found on multiple sites. Safety was discussed as top priority. Rental properties should be inspected at least initially prior to operation for housing code compliance. Discussion will continue with Planning Board and Foothills Board.

Ginny Curtis discussed the marijuana survey and meeting. There were multiple issues regarding growing, manufacturing, testing and retail. There will be a STM to prohibit marijuana for the time being so the SB, and PB can determine how others towns are handling the various issues associated with the operation of marijuana.

GC also asked for a list of licensed Septage Haulers and discussed how they were permitted in Westhampton. And the responsibilities of the hauler to send in "pumping reports".

GC discussed zoning board issues regarding Solar Arrays.

Meeting adjourned at 5:03 PM

A handwritten signature in dark ink, appearing to read "David B. Blum", is written over a horizontal line. The signature is stylized with a large, sweeping initial 'D' and a long, horizontal stroke extending to the right.